

AMERICAN FORK CITY COUNCIL
JULY 26, 2022
REGULAR SESSION MINUTES

Members Present:

Bradley J. Frost	Mayor
Kevin Barnes	Council Member
Staci Carroll	Council Member
Ryan Hunter	Council Member
Rob Shelton	Council Member
Clark Taylor	Council Member

Staff Present:

David Bunker	City Administrator
Camden Bird	Assistant City Administrator
Stephanie Finau	Deputy Recorder
Cherylyn Egner	Legal Counsel
Cameron Paul	Police Chief
Aaron Brems	Fire Chief
Patrick O'Brien	Development Services Director
Rebecca Andrus	City Engineer

Also present: Kurt Ostler (C&N Taylorsville)

The American Fork City Council held a public hearing in conjunction with the regular session on Tuesday, July 26, 2022, in the American Fork City Hall, 31 North Church Street, commencing at 7:01 p.m. The agenda shall be as follows:

PUBLIC HEARING

- Receiving public comment on the declaration of property to be surplus and disposed of.
No public comments were made.

REGULAR SESSION

1. Pledge of Allegiance; Invocation by Council Member Shelton; roll call.

Mayor Frost led the Pledge of Allegiance, and an invocation was given by Council Member Shelton. Roll call was taken.

2. Twenty-minute public comment period - limited to two minutes per person.

There were no public comments.

3. City Administrator's Report

David Bunker had nothing to report.

4. Council Reports

There were no council reports.

5. Mayor's Report

Mayor Frost had nothing to report.

COMMON CONSENT AGENDA

(*Common Consent* is that class of Council action that requires no further discussion or which is routine in nature. All items on the Common Consent Agenda are adopted by a single motion unless removed from the Common Consent Agenda.)

1. Approval of the June 14, 2022, city council minutes.
2. Approval of the June 21, 2022, work session minutes.
3. Approval of the June 28, 2022, city council minutes.
4. Approval of the authorization to release the Improvements Construction Guarantee and issue a Notice of Acceptance for the AF Crossing Plat C construction of public improvements located at 900 West 1000 South.
5. Ratification of city payments (July 6, 2022, to July 19, 2022) and approval of purchase requests over \$50,000.

Council Member Taylor moved to approve the common consent agenda. Council Member Barnes seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Kevin Barnes, Council Member
AYES:	Taylor, Shelton, Hunter, Carroll

ACTION ITEMS

1. Review and action on approval of a resolution declaring property to be surplus and disposed of to UDOT.

Council Member Taylor moved to approve Resolution No. 2022-07-28R declaring property to be surplus and disposed of to UDOT. Council Member Hunter seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Ryan Hunter, Council Member
AYES:	Hunter, Shelton, Carroll, Barnes, Taylor

2. Review and action on a resolution to accept/reject the C&N Taylorsville petition for annexation consisting of 1.313 acres at approximately 1700 North and North County Boulevard.

Council Member Carroll indicated she was okay with the way the resolution was written but suggested to the Council that they not annex property if they had issues that needed to be dealt with first.

Council Member Shelton mentioned that the applicant is requesting this, and the underlying proposed zone is the PF zone. He didn't know what the benefit to the city would be, as he didn't feel like it should be a public facilities zone and that it would fit better in a commercial zone unless the city had a need for it. He stated that originally the underlying zone was commercial, but the city changed that to public facilities when they were looking into placing the fire station on the property. He wanted to see what the best long-term use for the residents of American Fork is.

Ms. Egner responded that the property is designated as a Public Facilities zone, and that is how it is anticipated to be brought into the city as that is what the general plan allows for. If the city wanted to amend that, the amendment process would need to be followed and it would go back through the planning commission.

Council Member Hunter responded that it may be beneficial to the city to have a public facility there, and that they needed to consider whether they needed additional space for the police department. He added that he's not sure if he's ready for a change in the master plan as there has been a lot of thought and time that's gone into the general plan that says that it is zoned as a PF zone.

Council Member Shelton mentioned the only study done to his recollection was for a fire station, but that the city bought a larger parcel for future expansion purposes. He would hate to hold up a property owner from his ability to develop property based upon what the city might do. If the city felt it does have value to us, then the city should investigate negotiations and purchase it. He did not want to go through the process to place it in the wrong underlying zone.

Council Member Taylor mentioned that his only concern is that they need to determine what would leave the fire station unencumbered for egress before they annex this property. He was open to the commercial zone, but they needed to make sure it would not negatively affect the fire station.

Council Member Barnes stated his concern was the same as Council Member Taylor. If it does go to commercial zone, the only kind of commercial that would make that piece of property profitable to the landowner would have to be some kind of retail that would generate a lot of traffic and he didn't think they would want to put that kind of traffic there. He mentioned he would like the property stay in the PF zone so the city would have control over it and he didn't want to see retail there if it may negatively affect the fire station.

Council Member Shelton referred to what Council Member Barnes mentioned about the city wanting to maintain control of that land. If the city was not going to purchase and utilize the property, it should go back to what it was before. He added that originally the city thought the county was going to sell them the property and when negotiations broke down, the city found another solution. He felt the property owner is being controlled by the zoning requirements because the city does not have a plan for it.

Council Member Carroll clarified that zoning laws are there to control what happens on property. She felt the PF zone was there to protect the asset of the fire station. She felt that was a consideration on what was best for the residents.

Council Member Taylor commented the property was zoned public facilities because the city was going to purchase the property. Instead, the city purchased the adjacent lot but he was unaware of any malicious intent of the city holding on to control of the property; it was zoned that way before the property was sold.

Discussion ensued amongst the council regarding the property and whether zoning for public facility or commercial would be the best use, as well as when the zoning is assigned.

Mr. Bunker stated that there is different process for the zoning than the petition to be annexed. It would have to go through a re-zone process which would include the land use authority (the planning commission). He commented if there's confusion on what the intent is and what the city's desire are, they could table it and have further discussions on what it should be.

Mayor Frost agreed with Mr. Bunker and suggested tabling this action item for further discussion.

Council Member Hunter was okay with moving forward with the annexation with the understanding it should be maintained as public facility. He wanted that known up front by the landowner and that he felt it should stay in as public facility.

Kurt Ostler, partner in C&N Taylorsville, stated they purchased the property via bid with Utah County last June. He understood the reason the property went to the PF zone was because American Fork said it was looking to put a fire station there. He stated the prior zoning on the property was commercial, and he thought the property would return to commercial when the city purchased the Stratton property. Mr. Ostler has had several national retailers that have come looked at the corridor, and the location of the property at a lighted intersection on a corner signals to him "commercial". He commented that the city is leaving out a lot of sales tax dollars and also PARC tax dollars on the table if it remains PF zone. He did mention that he shared with Mayor Frost that there is a good retailer that is serious about wanting to be there. He added that they are not under contract with a carwash or anyone else and he won't until he knows the zoning. Mr. Ostler feels that having the city keep it as a PF zone feels like a taking as he can't do

anything with his property; it was not fair to make them stay in a public facility zone unless the city purchases the property. He further stated that he would not be interested in annexing if it is a PF zone.

Council Member Shelton asked if the best option would be to look at the zone change on the general plan first and then annex the property in as commercial.

Ms. Egner stated the council needed to either accept or deny the application at this meeting. The suggested motion was to annex the property into the school and public facilities land use designation, but Ms. Egner stated one option was to amend the motion to state that the property would be annexed consistent with the general plan. This would allow further conversations to continue a possible amendment to the general plan. If the general plan is amended, then the annexation zoning would be able to be amended as well at the time of annexation.

Mr. Ostler asked if they could pull the application if at any time if it sounds like it's going into the PF zone. He asked the council what other properties are in the public facility zone that are owned by a private owner.

Council Member Shelton interjected and agreed with Ms. Egner and requested staff look at this property and take it through the planning commission, then bring it forward with a recommendation on what the right underlying zone should be prior to final annexation.

Ms. Egner explained that part of the annexation process if Council accepts the petition is for staff and the property owner to come to terms on an annexation agreement, which would include that designation. If the designation was not consistent with the general plan then her recommendation would be to take that all back to Planning Commission for a land use change. For this reason, she suggested changing the motion to read that it would be consistent with the general plan. Ms. Egner noted that a statement was made that this was considered a "taking" if it was the PF zone, however, it would not be deemed as a "taking" as this is currently in the PF zone in our general plan. The city has no obligation to annex this property into the city. It is acknowledged that this would in the PF zone and the owner would be annexing the property consistent with that knowledge.

Council Member Taylor spoke to Mr. Ostler and commented that Mr. Ostler knew the property was in the PF zone and made the assumption that it would be commercial. He stated it may be commercial in the future. He stated the zone on the general plan was a PF zone months before the owner purchased the property. He was looking for the best option for public safety as that was the council's number one priority. He did not think it was a taking and was willing to sit down and talk about what would be best.

Ms. Egner explained that as of right now, the property is zoned PF and in order for the property to come into the city under any other zone it would need to be re-zoned. One option would be to annex the property in the PF zone with a zone change taking place after the annexation. Even if it

came in as a PF zone and a year later the Council decided, it could go commercial. She stated she wasn't sure if the applicant would prefer that option as they do not want to annex it if is under the PF zone. Ms. Egner reiterated that if the first statement was changed to read the property would come in consistent with the general plan, the general plan could be amended, and the property annexed under that zone.

Council Member Shelton moved to adopt Resolution No. 2022-08-29R to accept the C&N Taylorsville petition for annexation consisting of 0.978 acres and located in the area of 1700 North and North County Boulevard with the following conditions: (1) the property would annex into the applicable zone according to the general plan, (2) parcels 14:003:0400, 14:003:0402, 14:003:0404, 14:003:0397, 14:003:0405, 14:003:0403 shall also be part of the annexation and (3) the annexation agreement include the minimum dedication on the right-of-way of 1750 North and remittance of necessary water rights. Council Member Taylor seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Rob Shelton, Council Member
SECONDER:	Clark Taylor, Council Member
AYES:	Carroll, Taylor, Hunter, Barnes, Shelton

Ms. Egner explained that this is not the annexation but was accepting the petition to allow the city to have further conversations with the applicant.

3. Review and action on a master lease agreement with The Bancorp for the lease of five vehicles.

Council Member Shelton moved to approve the master lease agreement with The Bancorp for the lease of five vehicles and authorize the city to sign the necessary agreement.

Council Member Barnes seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Rob Shelton, Council Member
SECONDER:	Kevin Barnes, Council Member
AYES:	Shelton, Taylor, Hunter, Barnes, Carroll

4. Consideration and action to enter into a closed session to discuss items described in Utah State Code 52-4-204 and 52-4-205.

Council Member Taylor motioned to enter into a closed session to discuss items described in Utah State Code 52-4-204 and 52-4-205 at 7:38 p.m. Council Member Hunter seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Clark Taylor, Council Member
SECONDER:	Ryan Hunter, Council Member
AYES:	Hunter, Carroll, Shelton, Taylor, Barnes

The City Council entered into a closed session to discuss pending litigation at 7:44 p.m. Those present included Mayor Frost, Council Member Barnes, Council Member Carroll, Council Member Hunter, Council Member Shelton, and Council Member Taylor. Also present were City Administrator David Bunker, City Attorney Cherylyn Egner, and Deputy Recorder Stephanie Finau.

The closed session was audio recorded as required by law.

Council Member Hunter motioned to adjourn the closed session and return to regular session at 8:24 p.m. Council Member Shelton seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Ryan Hunter, Council Member
SECONDER:	Rob Shelton, Council Member
AYES:	Hunter, Carroll, Shelton, Taylor, Barnes

5. Adjournment.

Council Member Hunter motioned to adjourn the meeting. Council Member Barnes seconded the motion. Voting was unanimous.

The meeting adjourned at 8:24 pm



Stephanie Finau
Deputy Recorder